LITIGATION AND CENSURE

Only in the past 15 years has the MoD resorted to challenging the AFT awards of pensions more frequently than in the past. From 2010 onwards, when the UPA-II was in power, the numbers seemed to have increased significantly. Concerns raised then by veterans and civil society prompted the BJP to promise to minimise such appeals in 2014. In December 2014, the SC dismissed nearly 900 old appeals filed against verdicts favouring disabled soldiers. The defence secretary also directed all wings of the MoD to stop litigation in matters settled by courts. In July 2015, then defence minister Manohar Parrikar constituted a high-level committee to recommend a reduction in litigation. In December, the panel suggested withdrawing appeals, especially those involving disabled soldiers. It also criticised the "ego-fuelled" litigation initiated by the MoD and defence services against their own employees and former employees. Asking the MoD to be more "sensitive", the panel pointed out that the stress and strain of military service—frequent transfers, 24-hour deemed duty, living away from family—often resulted in the aggravation of disabilities, including mental health issues, in soldiers.

In 2017, the then Attorney General of India asked the MoD to withdraw these appeals to save the government from unnecessary embarrassment and costs. In April 2018, the SC slammed the MoD over the issue. In a detailed judgment, the court called out its negative approach that burdened the courts and wasted public money. As a note of its extreme displeasure, a fine of Rs 1 lakh was imposed on the MoD. In September 2018, then defence minister Nirmala Sitharaman ordered the MoD not to challenge pension matters already settled in favour of disabled soldiers and asked the ministry's officers to give up their "prestige-based" litigation.

In early 2023, faced with the non-implementation of its judgments for years together, the AFT issued a series of orders, including arrest warrants, against officers of the defence accounts department. The cumulative effect of these censures brought down the number of cases, though not by much. After the change in disability rules in September 2023, the Defence Accounts Department took up the matter with the Department of Ex-servicemen Welfare of the MoD and sought the opinion of the Judge Advocate General Department (or JAG, the legal branch of the army) and senior law officers. In October 2023, the MoD, in a reversal of policy decisions taken by former defence ministers, directed the army to again start filing writ petitions challenging all orders passed in favour of soldiers by AFT.

The new rules also keep out lifestyle diseases like hypertension, strokes, heart ailments and diabetes during the calculation of disability pension, covering them



LENDING A HELPING HAND

The main disability benefits for servicemen, governed by various rules, including the Pension Regulations for the Army, 1961, and the Entitlement Rules for Casualty Pensionary Awards, 1982

- **Disability Pension:** A monthly pension paid to soldiers who are disabled due to service-related injuries or illnesses
- **War Injury Pension:** A special pension for soldiers who are injured in combat/ operational duties
- **Liberalised Disability Pension:** A higher rate of pension for disability due to service-related injuries not requiring a medical board to assess its extent
- **Constant Attendance Allowance:** Monthly allowance paid to soldiers who require constant attendance due to their disability
- **Medical Expenses:** Reimbursement of medical expenses for treatment of service-related disabilities
- **Employment Opportunities:** Reservation of government jobs for disabled soldiers
- **Education and Training:** Provided to disabled soldiers to enable them to acquire new skills and find alternative employment